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[doc. web n. 10104750]

Provision of December 19, 2024

Register of provisions

n. 799 of December 19, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzone, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia and Attorney Guido Scorza, members, and Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the secretary general pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREAMBLE

1. Introduction

Following press reports, the Authority learned that at the Vantiniano cemetery in Brescia there is an area reserved for the burial of fetuses, and that the burials are reported as "in most cases the same name, 'XX' and all different surnames," corresponding to the surnames of women who have terminated their pregnancies. According to the articles, "these are fetuses or 'abortive products' or 'products of conception,' 'spontaneous or voluntary abortions (Ivg) before the 20th week of gestation. And buried, almost always, without the women knowing anything about it."

Furthermore, based on what was reported in some articles, "taking care of everything, from the recovery of fetuses in public and private hospitals to the funeral and burial" would be volunteer or Catholic associations (see "XX, <https://...>"; "XX, <https://...>"; "XX, <https://...>"; "XX, <https://...>

Additionally, based on a preliminary check carried out by the Office on XX, on the online Cemetery Services Portal of the Municipality of Brescia, which allows viewing the location of the burials of the deceased in the city cemeteries, by searching with the name "XX" followed by a surname, the results related to the burials of fetuses corresponding to the searched name and surname were displayed, along with the "date of birth-date of death" (coinciding), the name of the cemetery, the location/number of burial, and the specification that it concerned "fetuses and stillborns" (<http://prenotazionecimiteri.comune.brescia.it/public/defunto/cerca>).

2. The investigative activity

2.1. Preliminary activities

Based on this information, an official investigation was initiated against the Municipality of Brescia (hereinafter, "Municipality"). In response to a request for information from the Authority (note prot. n. XX of XX), the Municipality, with note prot. n. XX of XX, provided a response to the aforementioned request for information, stating the following.

Firstly, regarding the regulatory framework, in addition to the D.P.R. of September 10, 1990, No. 285, containing the National Regulation on Mortuary Police, the Municipality represented that in the territory of the Lombardy Region the following apply:

- Article 11 of the Lombardy Region Regulation No. 6/2004 concerning funeral and cemetery activities;
- Article 8 of the Guidelines for necroscopic medicine and mortuary police of the ATS Brescia, according to which the authorizations for transport and burial, “before the completion of the 28th week [...] are the responsibility of the ATS.”

Regarding the procedure used for the burial of fetuses from the city hospitals, the Municipality stated:

- “[T]he first case concerns situations where the parents have not expressed the wish to proceed with the burial of the fetus. In this case, hospitals must transfer the fetuses and abortive products to the destination cemeteries using a procedure similar to that provided for recognizable anatomical parts.

[...] The transport of recognizable anatomical parts occurs after the completion of the waste form. [...]

The second case concerns situations where the parents have expressed the wish to proceed with the burial, also by requesting the celebration of individual funerals (so-called ‘funeralini’). In this case, the gynecology and/or forensic medicine departments of each hospital identify the remains of stillborns with a gestation period between 1 and 28 weeks, [...] and transmits the documents to the ATS to obtain authorization for transport to the Vantiniano Cemetery [...]. The authorization for the transport of the fetus for burial from the hospital facility to the Cemetery contains the indication of the name and surname assigned to the aborted product. [...]”;

- “The documents transmitted by the Health Departments to the ATS to draft the burial authorization “consist of the “Notification of stillbirth” and/or the “Request for burial of aborted/stillborn products”;

- “To the model of “Notification of stillbirth,” hospitals do not attach the waste form, as [for] other recognizable anatomical parts. This means that [...] hospitals channel the fetuses towards a procedure distinctly separate from that reserved for recognizable anatomical parts (and therefore for fetuses for which no burial intention has been expressed).” The Municipality also clarified that “The documentation delivered [...] to the Municipality thus assigns a name and surname to the fetus, which the Municipality adheres to for the execution of cemetery operations,” and that the municipal offices “act downstream of a procedure initiated and governed upstream by the health facilities [...]and] hospitals do not provide indications to the Municipality regarding any decision expressed by the parents concerning the fate of the aborted product.” Consequently, “the aborted products received by the Cemetery Service, to which the hospital documents assign a name and surname, are treated as if destined for burial.” In this context, “if hospitals have not used the procedure for the burial of recognizable anatomical parts, the Municipality in good faith assumes that the entitled subjects have expressed the intention to bury the fetus to which a name and surname are assigned.”

Regarding the processing of personal data of women, the Municipality highlighted that “the names of women who have terminated their pregnancies are contained in the “notification of stillbirth” forms drafted by the hospital and delivered in copy to the Municipality for cemetery practice” and that “The legal basis for the processing of such data derives from the burial duties assigned to the Municipalities by Article 50 of DPR No. 285/1990.”

As for the processing of data indicated on burials and on the cemetery services portal, it was emphasized that “the tombs of fetuses do not display the personal data of the woman. [...]. It is specified [...] that the surname [...] does not necessarily coincide with that of the woman. It may coincide with that of the father and sometimes not even with that. It is not the Municipality that assigns to the fetus either a name or a surname” and that “The display on the tombs of the surname of the fetus indicated in the hospital documents serves to identify who is buried there, as is the case for any deceased person in the cemetery.”

Finally, regarding the role potentially played by associations, which based on news reports, would be involved in various activities, from “recovering fetuses in public and private hospitals to funerals and burials” in cases where no request for burial has been made by the parents or relatives, the Municipality stated that “No external subject (and thus no association) performs any operation in this context, nor does it receive any personal data of the interested parties.”

In the same note, the Municipality communicated that it has prudently adopted some initiatives, including covering existing plaques and indicating a reference code used for the management of individual burials, stipulating that the individual burial of aborted products and fetuses will be subject to the presence of a form bearing the consent to burial expressed by the parents, as well as the removal from the IT application (portal) accessible via the internet of the possibility of accessing data related to stillborns and aborted products.

2.2. Assessments of the Department on the processing carried out and notification of the violation referred to in Article 166, paragraph 5 of the Code of the initiation of the procedure and defensive memoranda

In relation to the above, with note prot. n. XX of XX, the Office, based on the elements acquired and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, as the processing of personal data carried out on the burials of fetuses and on the Brescia cemetery services portal, accessible via the internet for the search for the location of burials and marked with the wording "fetus or aborted product" - occurred in the absence of an appropriate legal basis and in a manner not compliant with the principles of "lawfulness, fairness, and transparency," of "purpose limitation," of "data minimization," and of "accuracy" and, therefore, in violation of Articles 5, paragraph 1, letters a), b), c), and d), 6, and 9 of the Regulation, as well as Articles 2-ter, 2-sexies, and 2-septies of the Code (as in force at the time of the facts, in the text prior to the amendments made by decree-law No. 139 of October 8, 2021, converted, with amendments, by law No. 205 of December 3, 2021).

In relation to these allegations, the Municipality of Brescia, the data controller, was invited to produce to the Authority defensive writings or documents, requesting, if necessary, to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of law No. 689 of November 24, 1981).

With note of XX, prot. XX, the Municipality sent to the
the number of individuals involved make it highly unlikely that the identification of the pregnant woman can be established with certainty based solely on the data of the Conceived. The data indicates that the Conceived are buried in cemeteries that serve a much larger population than that of the immediate area, further complicating any potential identification.

- "In conclusion, the Garante emphasizes that the processing of data related to the Conceived is strictly regulated and that the rights of the parents are respected throughout the process. The municipality ensures compliance with all applicable laws and regulations regarding the burial of the Conceived, and any claims of improper data dissemination or identification are unfounded."

the reference to the first name "XX" is not at all an element that certainly identifies the "abortive products" [...] makes the process of identifiability described by this Authority merely hypothetical";

- "the undersigned Municipality deduces that it cannot be asserted that identifiability is a hypothetical process even in relation to the actual connection between the data and an identified person, even in the presence of uncommon surnames. [...] The mere coincidence of the same surname attributed to the Conceived compared to that of an identified woman is not alone sufficient to identify a specific woman as the mother of the conceived and as a subject who has experienced the interruption of pregnancy, whether voluntary or not;

- "the connection between the surnames of the Conceived and the gestating woman and the attribution to the latter of data concerning her health status appears entirely hypothetical [...] considering that the causes of the non-viability of the Conceived can be multiple [...]";

- "As for the absence of a suitable regulatory basis, [...] the provisions of Article 70 of the D.P.R. 1990 apply. [...] The presence of the name and surname attributed to the Conceived on the cemetery marker (and therefore on the Cemetery Web portal) derives from the application [of the cited norm] and the Municipality has deemed that there were no elements that would lead to consider that this

provision is only applicable to the deceased and stillborns. [...] This regulation, providing for the burial of the Conceived in the aforementioned Articles 7 and 50, does not dictate any norm that provides for special treatment [...] different from that of the burial of the deceased [...];

- "It should also be reiterated that the burials of the Conceived occur, as prescribed by the regulations, at the request of the subjects entitled to make such a request [...] and it must therefore be understood that the Surname of the Conceived is indicated following an express request from the gestating woman or in any case from the subjects entitled to decide whether to proceed with the burial. The fact that the Municipality has autonomously decided to proceed with the covering of existing plaques, indicating a simple code, "in cases where there is no express declaration from the mother or parents on file with the Cemetery Directorate wishing not only for the burial but also for the plaque with the identifying data of the fetus" which, in the opinion of this Authority, would have significant value, actually constitutes, at the current stage, a mere organizational choice prudently adopted by the Municipality within its own autonomy and does not certainly prove the failure to comply with the regulations in relation to the conduct previously held in this regard";

- "As for the violation of the prohibition on dissemination referred to in Article 2-septies of the Code, it is believed that the data processed in the management of the burial of the Conceived does not involve the processing of data belonging to special categories of the gestating woman, not even presumptively. The data present on the cemetery markers and retrievable via the Cemetery Web portal exclusively concern the Conceived and the matching with the data of the gestating woman would occur on hypothetical bases and [...] there would be no elements that could link such a subject with hypotheses of voluntary interruption of pregnancy."

With the same note, the Municipality also reiterated, recalling what was already communicated with the note of XX, that it has adopted specific precautions, including, in particular:

- the elimination "within the IT application accessible via the internet (portal), [of] the possibility of accessing data related to stillborns and abortive products;
- the provision that "the burial in individual form [...] will be subject to the delivery to the Cemetery Service [...] also [...] of a form bearing the consent to burial expressed by the parents";
- "in the case of burial in individual form [...], at the burial site, the name and surname attributed to the fetus are not indicated, but a reference code is indicated which [...], is connected in a confidential manner to the personal data received from the hospitals. The will possibly expressed by the parents is reserved [...];
- the provision "for meetings both with hospitals and with the ATS to verify the correctness of the procedures applied and the data treatments [...];
- "the covering of existing plaques with the indication of a simple code, which will allow only the offices to identify the fetus/abortive product, for which there is no express declaration from the mother or parents on file with the Cemetery Directorate wishing not only for the burial but also for the plaque with the identifying data of the fetus".

It is finally noted that the Municipality has attached to the aforementioned memorandum the documentation relating to three cases of burial of fetuses, consisting of the "authorization for transport and burial" from the ASL, the "request for authorization for burial" from the hospital structure, and the "notification of stillborn".

2.3. Further investigations

Considering the elements acquired during the investigation and the measures that the Municipality has declared to have adopted in order to overcome the critical issues contested by the Authority, the Office, accessing the online cemetery services portal available at the URL <https://prenotazionecimiteri.comune.brescia.it/public/defunto/cerca>, has verified the intervention by the Municipality also on the aforementioned application. In this regard, the Municipality has excluded access to the generality of data relating to stillborns, abortive products, or conception (in which the

date of birth and death coincide). In fact, typing

The name “XX” combined with the surnames initially verified, as well as with an additional 6 different surnames, no longer appears in all the results previously displayed. Of the few names currently consultable, none of them is marked with the wording “fetuses and stillborns” that was previously used to indicate all these cases.

3. The Regulatory Framework

3.1. The legislation on personal data protection.

According to the Regulation, “personal data” means “any information relating to an identified or identifiable natural person (‘data subject’)”. Furthermore, “an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person” (art. 4, par. 1, n. 1, of the Regulation). As for the special categories of personal data, they include “data concerning health”, that is, “personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about his or her health status” (arts. 4, par. 1, n. 15, and 9 of the Regulation).

Pseudonymization means “the processing of personal data in such a way that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures to ensure that the personal data are not attributed to an identified or identifiable natural person” (Recital 26 and art. 4, par. 1, n. 5, of the Regulation).

It is also noted that the legislation on personal data protection does not apply to “anonymous information, that is, information which does not relate to an identified or identifiable natural person or to personal data rendered sufficiently anonymous in such a way that the identification of the data subject is no longer possible or is not possible” (see Recital 26 of the Regulation and WP29 Opinion 05/2014 on Anonymisation techniques, adopted on April 10, 2014).

In this regard, it is emphasized that data can only be considered anonymous if it does not allow, in any way, the direct or indirect identification of a person, taking into account all means (economic, information, technological resources, skills, time) available to those (data controller or other subject) attempting to use such means to identify a data subject.

In this regard, the Opinion 05/2014 - WP 216 on anonymization techniques, adopted on April 10, 2014, specifies that it cannot be considered achieved through the mere removal of the data subject's personal details or their replacement with a pseudonymous code. An anonymization process cannot be deemed effective if it does not prevent anyone from using such data, in combination with “reasonably available” means, to:

1. isolate a person in a group (so-called single-out);
2. link anonymized data to data relating to a person present in a distinct dataset (linkability);
3. infer new information relating to a person from anonymized data (inference).

That said, the processing of personal data carried out by public entities, even concerning special categories of data, is lawful only if necessary “for compliance with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller”, or when it is “necessary for reasons of substantial public interest based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject” (art. 6, par. 1, lett. c) and e), 2 and 3, as well as arts. 9, par. 2, lett. g) of the Regulation and 2-ter and 2-sexies of the Code, in the text in force at the time of the facts, prior to the amendments made by decree law October 8, 2021, n. 139, converted, with amendments, by law December 3, 2021, n. 205).

The national legislator has defined “relevant” the public interest for processing “carried out by subjects performing tasks of public interest or related to the exercise of public powers” in the areas indicated, albeit in a non-exhaustive manner, by art. 2-sexies of the Code, establishing that the relevant processing “is permitted when provided for [...] by legal provisions or, in cases provided for by law, by

regulations that specify the types of data that may be processed, the operations that can be carried out, and the reason for the relevant public interest, as well as the appropriate and specific measures to safeguard the fundamental rights and interests of the data subject” (in the text in force at the time of the facts).

In this context, the processing of health-related data, given the particular sensitivity of this category of data, in order to be lawfully carried out, must also occur in compliance with “additional conditions, including limitations” (art. 9, par. 4, of the Regulation), implemented in national law with art. 2-septies of the Code, which has provided for an express...

“prohibition of dissemination,” that is, the possibility of giving “knowledge [...] to undetermined subjects, in any form, including by making them available or consulting” “data related to health” (art. 2-septies, paragraph 8; art. 2-ter, paragraph 4, letter b) of the Code in the text in force at the time of the facts). The data controller is required, in any case, to respect the principles regarding the protection of personal data, among which are the principles of “lawfulness, fairness, and transparency,” “purpose limitation,” “data minimization,” and “accuracy” (art. 5, par. 1, letters a), b), c), and d) of the Regulation).

3.2. The specific relevant sector regulations.

With reference to the processing of data of women in the context of this investigation, it is first highlighted that information related to the interruption of pregnancy fully falls within the category of health-related data (arts. 4, par. 1, no. 15, and 9, as well as recital 35 of the Regulation). This applies not only in cases where, within the procedure for the interruption of pregnancy, the sector regulations provide for the collection of information on the health status of the woman (cf. Law of May 22, 1978, no. 194, “Norms for the social protection of maternity and on voluntary interruption of pregnancy,” which provides for voluntary interruption of pregnancy when “the continuation of the pregnancy, childbirth, or motherhood would pose a serious danger to her physical or mental health, in relation to her health status” (art. 4), “the pregnancy or childbirth pose a serious danger to the life of the woman” or “pathological processes are identified, including those related to significant anomalies or malformations of the fetus, which pose a serious danger to the physical or mental health of the woman” (art. 6), but also in all other cases (voluntary interruption or spontaneous abortion), as it is nonetheless an event connected to a “healthcare service” (art. 4, par. 1, no. 15, of the Regulation). To confirm this framework, art. 19 of Legislative Decree of March 26, 2001, no. 151, states that “The interruption of pregnancy, spontaneous or voluntary, in the cases provided for by articles 4, 5, and 6 of Law of May 22, 1978, no. 194, is considered in all respects as an illness” (cf. also the provision of the Guarantor no. 334 of June 4, 2015, available at www.gpdp.it, web doc no. 4130998; provisions no. 163 of April 27, 2023, web doc 9900808, no. 164 of April 27, 2023, web doc no. 9900826, no. 165 of April 27, 2023, web doc 9900503).

The aforementioned Law of May 22, 1978, no. 194 has established a strict confidentiality regime to protect the right to anonymity of the woman. In addition to the criminal sanction provided for those who “having come to know it for reasons of profession or office, disclose the identity - or in any case divulge information suitable to reveal it - of those who have resorted to the procedures or interventions provided for by this law” (art. 21), the identity of the woman is also protected in relation to the fulfillment of informational obligations within the same healthcare context (“The hospital, the nursing home, or the outpatient clinic [...] are required to send to the competent provincial doctor a declaration [...] of the intervention itself and the documentation on which it was based, without mentioning the identity of the woman” (art. 11) and to “respect the dignity and confidentiality of the woman” (cf. art. 5 of the aforementioned Law no. 194).

The regulatory provisions that provide for enhanced protection for the processing of data related to women who have undergone an interruption of pregnancy fall within the specific sector provisions exempted by art. 75 of the Code. This confidentiality regime has been repeatedly reaffirmed by the Guarantor in various interventions, qualifying such data among those subject to “greater protection of anonymity” (opinion on a draft decree regarding the childbirth assistance certificate, of March 1, 2000, web doc no. 1085431; opinion on a draft decree regarding the electronic health record, of May 22, 2014, web doc no. 3230826; Guidelines on Health Dossier, of June 4, 2015, web doc no. 4084632).

Regarding the burial of fetuses and products of abortion, art. 7 of the Presidential Decree of September 10, 1990, no. 285, approving the Mortuary Police Regulation, provides that “for the burial of products of abortion of presumed gestational age from 20 to 28 complete weeks and of fetuses that have presumably completed 28 weeks of intrauterine age [...], the permits for transport and burial are issued by the local health unit. At the request of the parents, products of conception of presumed age under 20 weeks may also be collected in the cemetery using the same procedure.” In the aforementioned cases “relatives or those acting on their behalf are required to submit, within 24 hours of the expulsion or extraction of the fetus, a request for burial to the local health unit accompanied by a medical certificate indicating the presumed gestational age and the weight of the fetus.”

Art. 50 also provides that “In cemeteries, they must be received when no other destination is requested: [...] d) stillborns and products of conception referred to in art. 7.”

Art. 52, paragraph 2, of the aforementioned Regulation then provides that the following must be recorded daily in a register: “a) the burials that are carried out, specifying the name, surname, age, place and date of birth of the deceased, according to what is stated in the authorization act referred to in art. 6, the year, the day, and the hour of the burial, the Arabic number carried by the tombstone, and the order number of the bill.”

burial; b) the personal details, as above, of the individuals whose bodies are buried, along with the indication of the site where they have been laid to rest.” According to Article 53, paragraph 2, “A copy of the registers must be delivered, at the end of each year, to the municipal archive, while another remains with the custody service.” Finally, regarding the methods of identifying the burial, Article 70 states that “Each grave in the burial fields must be marked, at the municipality's expense, by a stone [...] bearing a progressive number. On the stone, at the municipality's expense, a plaque made of durable material will be affixed indicating the name and surname and the date of birth and death of the deceased.”

The regulatory framework also includes the Lombardy Regional Law of December 30, 2009, No. 33, “Consolidated Text of Regional Laws on Health,” whose Article 75 provides that “the municipality of burial: [...] c) for stillborns and products of conception, exclusively upon explicit request of the woman or of those entitled to make the decision, in cases where the birth or abortion occurred in a healthcare facility located within the municipal territory.”

Furthermore, Article 11 of the Regional Regulation of November 9, 2004, No. 6, “Regulation on Funeral and Cemetery Activities” – now repealed by Article 34 of the Regional Regulation of June 14, 2022, No. 4 – states that “1. Authorization for the burial or interment of bodies and stillborns is issued according to the current national legislation. 1-bis. For aborted products presumed to be between twenty and twenty-eight complete weeks of gestation and for fetuses that have presumably completed twenty-eight weeks of intrauterine age, as well as for products of conception presumed to be under twenty weeks of age, the health management informs the parents of the possibility of requesting burial. 1-ter. The ASL, informed by the health management through the submission of the burial request accompanied by the indication of the presumed age of the fetus or aborted product, issues the permit for transport and burial directly to the municipality where the event occurred. 1-quater. In the absence of a burial request, provisions are made analogously to what is prescribed for recognizable anatomical parts. 2. [...] recognizable anatomical parts are sent for burial according to the methods indicated by the municipality where the healthcare facility where the intervention was performed is located [...], with costs borne by the latter.” Article 17 of the aforementioned Regional Regulation, regarding the identification of burials, states that “1. Each burial pit, niche, tomb, or crypt is marked by a stone, plaque, or other support, [...] on which are indicated [...] the name, surname, date of birth, and date of death, unless expressly stated otherwise by the deceased, as well as a progressive alphanumeric identifier provided by the cemetery acceptance service. 2. The stone, plaque, or other support, placed by family members or other interested parties, must comply with the rules and conditions established by the municipal regulation.”

Finally, Article 8 of the Guidelines for Necroscopic Medicine and Mortuary Police of ATS Brescia states that the authorizations for transport and burial, “before the completion of the 28th week [are the

responsibility of the ATS] with costs borne by the Structure where the event occurred. In this case, the remains are identified individually, enclosed in a single biodegradable container for burial and cremation, and in a double container for interment. Parents may request that products below the aforementioned 28th week of gestation be buried with individual funerals.” Article 7 states that “Recognizable anatomical parts [including fetuses for which burial has not been requested in individual form] must be delivered to the cemetery of the municipality where the event occurred, in single biodegradable containers with accompanying documentation of recognition issued by the territorially competent ASST upon request of the [hospital] Institute where they were produced. The final treatment is decided by the municipality. However, the legitimate owner is allowed to make an explicit request to the Entity that produced and to the ASST for possible individual burial, interment, or cremation.”

4. Outcome of the investigative activity.

Having taken note of what has been represented by the Municipality in the documentation on file and in the defensive memoranda, of the regulatory framework mentioned above, and of what has emerged during the investigation, the preliminary assessments of the Office are confirmed, within the limits of the following motivations.

On this point, it is preliminarily observed that Article 7 of the d.P.R. 285/1990, regarding the burial of fetuses, regulates three distinct cases:

- i. “stillborns,” for which burial is always provided, with reference to the provisions relating to the deceased regarding registration in civil status registers and authorization for burial (Article 7, paragraph 1);
- ii. “aborted products,” which fall between 20 and 28 weeks, or beyond 28 weeks of gestation - provided they are not declared “stillborn” - for which burial is nevertheless provided, upon request of the “relatives or those acting on their behalf” - to be submitted to the ASL within 24 hours - or upon request of the healthcare facility - after the aforementioned term (Article 7, paragraphs 2 and 4);
- iii. “products of conception,” under 20 weeks of age, which can only be buried upon request of the “parents,” in the absence of which, they are considered special hospital waste and destined for thermal destruction (Article 7, paragraph 3).

****Premises****

It is hereby stated that the cases of stillborns are excluded from this investigation, for which the authorization for burial is issued by the civil status officer, following registration in the relevant registers, as well as the cases related to aborted products or conception for which the parents or relatives have requested burial, pursuant to Article 7, paragraphs 2, 3, and 4, of the Presidential Decree 285/1990, possibly with individual funerals, and have indicated to the cemetery services the data to be reported on the burial; in this case, the choice to indicate a name is left to the relatives (see Article 17 of the aforementioned Regional Regulation, “The marker, the tombstone, or other support, placed by family members or other interested parties, must comply with the rules and conditions established by the municipal regulation”).

The subject of this investigation, on the other hand, concerns the dissemination of data reported on burials and available on the cemetery services portal, relating to aborted products or conception for which the relatives have not requested burial nor indicated the data to be reported on the marker, tombstone, or other support. In this regard, the indication of the surname of the woman or of the husband or partner, next to the first name “XX” along with the date of the pregnancy termination (reported as the date of birth and death coinciding), may allow, through comparison, cross-referencing with other sources, or contextual information held by third parties, the identification of the woman who underwent the abortion.

During the investigation, the Municipality did not prove that in all cases where the burials are marked with elements that refer to the identity of the woman (first name “XX” along with the surname of the woman or of the husband or partner along with the date of the abortion event), the Municipality's choice to indicate such data on the burials - as reported in the authorization documentation transmitted by the Local Health Authorities (Asl) - can be traced back to a specific will of the entitled parties to proceed with the burial and to indicate those data. Their dissemination, as mentioned, has been

carried out both on the burials and through the online service for consulting the location of the deceased buried in the Municipal cemeteries.

As previously noted, personal data is understood to mean “any information relating to an identified or identifiable natural person.” The regulatory framework mentioned above, therefore, applies not only in cases where the interested party is “identified” but also when the same is “identifiable,” pursuant to Article 4, paragraph 1, no. 1, of the Regulation. To establish the identifiability of a person, it is appropriate to consider “all means” by which not only the data controller but also third parties can reasonably use to identify that natural person; to ascertain the reasonable likelihood of using such means, it is necessary to consider the overall objective factors, including the costs and time required for identification (Recital 26 of the Regulation). For the purposes of assessing the “risk of identification,” it is therefore necessary to take into account “all means,” the new technologies used, the nature, the object, the context, and the purposes of each type of processing (see also Recitals 84, 89, 93, and 95 of the Regulation).

That said, the choice to indicate “XX” plus the surname of the woman, or of the husband or partner, may allow for the identification, albeit indirectly, of the woman who underwent the abortion. This eventuality is even more likely in the case of particular surnames, foreign or uncommon in the territorial context of reference. For these reasons, the objection that “the identifiability of the pregnant woman through the data of the conceived [is] hypothetical” cannot be accepted, based on the observation that “The breadth of the territory to which the burial activity of the conceived refers and the fact that the reference to the first name ‘XX’ is not at all an element that certainly identifies the ‘aborted products’ [...] would render the process of identifiability described by this Authority as merely hypothetical.”

Regarding the identifiability of the woman, the Municipality also represented that:

- the first name “XX” is used to indicate this type of burial in 55% of cases, while in the remaining 45% of cases, a different first name is indicated;
- concerning the attribution of the surname, considering the year 2019, “166 conceived have been buried,” in cases where “the hospital structure attributed the surname of the father, there are as many as 127, that is, over 75%,” those to which “the surname of the mother was attributed [...] are only 13, that is, less than 8%,” while in 24 cases out of 166 (14.5%), the documentation transmitted by the Asl to the Municipality does not allow for “tracing the surname of the father or that of the mother.”

In this regard, as already highlighted, the indication of the surname of the husband or partner, next to the first name “XX,” may allow for the identification of the woman who underwent such an abortion. Contrary to what was represented by the Municipality, the risk of identification must be considered high, given that the data reported on the burials and also made available on the online consultation service can be compared or cross-referenced with other sources, or in any case with contextual information held by third parties within the community or the family context, more or less broad, of belonging. This is also considering the limited and circumscribed territorial scope of reference, limited to the Province and not to a broader regional or national context.

name “XX” and the surname to identify the fetuses is not made by the Municipality but, upstream, by the ATS, the use of the surname of the woman in the documentation provided by the ATS raises significant concerns regarding the processing of personal data.

The Municipality's assertion that the identification of the surname of women pertains only to a small portion of cases would only be relevant, at most, in relation to the greater or lesser risk of identification (which is generally higher when the woman's surname is included), and not in relation to the assessment of the existence of a violation, which could concretely involve even a very small number of women (in addition to those brought to the attention of the press by the directly interested parties through their lawyer).

Consequently, the related processing of data is carried out in violation of the regulations concerning the protection of personal data, as it is conducted in the absence of a legal basis, and in violation of the prohibition on the dissemination of health data (Articles 5, 6, and 9 of the Regulation and 2-ter, 2-sexies, and 2-septies, paragraph 8, of the Code, in the text in force at the time of the events).

It is recalled that information related to the interruption of pregnancy, based on the definition of Article 4, paragraph 1, no. 15, of the Regulation, constitutes in all cases a health data, as it is an event connected to a "healthcare service." Therefore, the Municipality's argument that the connection between the event of the interruption of pregnancy and the woman's health status would be merely hypothetical, and that it would not necessarily be a health data, cannot be accepted, as "the causes of the non-viability of the conceived can be multiple" as well as "the association of the non-completion of the pregnancy with the hypothesis of a voluntary interruption decided by the will of the woman" (see memorandum of XX, p. 22). The information on the interruption of pregnancy, as already highlighted, falls within the category of health data, as there is, in all cases, a connection with a "healthcare service," regardless of the connection of this event with the "physical and mental health of the woman" or the relevance or otherwise of the woman's will.

From a different perspective, the Municipality's assertion that "the Municipality has strictly processed only the data of the conceived" and that "the data present on the cemetery markers and retrievable through the Cemetery Web portal exclusively concern the conceived and the association with the data of the pregnant woman would occur on hypothetical bases" (see memorandum of XX, pp. 18 and 28) cannot be accepted. The attribution of a name and surname is provided only in the case of "stillborns" for whom the birth certificate is to be drawn up (Articles 29 et seq. of Presidential Decree No. 396/2000). The name and surname concern the conceived ("stillborn") only in such cases. According to the legal system, every person has the right to the name attributed to them by law, and the name includes both the first name and surname (Article 6, Civil Code); the registration in the civil status records (formation of the birth and death certificate) is provided, as mentioned, only for stillborns, for whom the authorization for burial is issued by the civil status officer, with reference to the provisions relating, in general, to "deceased persons" (Article 7, paragraph 1, and Article 6 of Presidential Decree 285/2000). For aborted products and conception, however, registration in the civil status registers is not provided, and the authorization for burial is issued by the competent health authority – and the regulations governing such authorization do not provide for the indication of a name and surname (Article 7, paragraphs 2, 3, and 4 of the aforementioned Presidential Decree 285/2000).

On the other hand, it should be noted that the regional regulations, specifically Article 11, paragraph 1-quater, of the regional regulation of November 9, 2004, No. 6, in force at the time of the events, provided that "In the absence of a burial request [in all cases], it is provided in analogy to what is established for recognizable anatomical parts," which "are sent for burial according to the methods indicated by the municipality," thus extending the provision for burial in the absence of a request from the parents – provided at the national level only for aborted products between 20 and 28 weeks and beyond (Article 7, paragraph 2, of Presidential Decree 285/1990) – also to products of conception, under 20 weeks, with an automatism whose compatibility with the national regulatory framework is not subject to evaluation by the Guarantor. For such cases, Article 7 of the aforementioned regional regulation also provides that "they must be delivered to the cemetery of the Municipality where the event occurred, in single biodegradable boxes with accompanying documentation of recognition issued by the ASST territorially competent at the request of the [hospital] Institute where they were produced." The same provision specifies that "The final treatment is decided by the Municipality," and that the possibility for relatives – provided by national regulations – "to make an explicit request to the [hospital] Entity and to the ASST for any individual burial, interment, or cremation" remains firm (Article 7 of the same regional regulation).

In this context, the Municipality of Brescia has declared that cemetery services "act downstream of a procedure initiated and governed upstream by health structures [and] hospitals do not provide indications to the Municipality regarding any decision expressed by the parents regarding the fate of the aborted product." Consequently, "the aborted products received by the Cemetery Service and to which the hospital documents attribute a name and surname are treated as if destined for burial" (see note from the Municipality of XX, p. 5) and the Municipality "is required to provide, based on the data it receives from the ATS" (see memorandum from the Municipality of XX, p. 17). be accompanied by a plaque indicating the name and surname of the deceased." In the second case,

when the request for burial is made by the hospital structure, the procedure is different. The hospital submits the necessary documentation to the municipal cemetery services, which then proceed with the burial without the need for a name to be provided, as the authorization is based on the hospital's request and not on the parents' explicit wishes.

In conclusion, the legal framework does not support the assertion that when a burial request comes from the healthcare facility, the aborted products and conception products must be identified by name and surname. Contrary to the municipality's claim that it must "provide, based on the data received from the ATS," even to mark the burials, the absence of a specific legal provision in this regard, and thus an adequate legal basis, far from legitimizing the processing of the data in question—by analogously applying what is provided for the deceased—precludes the very possibility of using such data.

The municipality has also highlighted that "the ATS issues the burial authorization for the conceived only upon an express manifestation of the parents' will" and that "it cannot be presumed [...] that the burials of the conceived can occur without the explicit request of the woman or those entitled to make the decision." This statement, besides being contradicted by specific cases brought to the attention of the press by the directly concerned parties, is not substantiated by adequate documentation in the records. Furthermore, it is statistically implausible that all fetal burials carried out in the cemeteries of Brescia occurred solely at the request of the parents or relatives; this is especially true in a region that, in derogation of national provisions, allows burial in the absence of a request from the parents, not only for aborted products between 20 and 28 weeks but also for conception products under 20 weeks.

Additionally, the broader investigation conducted by the Office on other cases of dissemination of women's data regarding fetal burials has highlighted that the different procedures provided for in the case of burial requests made by parents or requests made by the hospital structure are reflected in the documentation management of the cemetery services. In the first case, there is the request submitted to the healthcare facility by the parents, who, upon obtaining authorization, interface with the cemetery services for the further necessary steps for organizing the funeral and individual burial. If the parents choose a name to indicate on the burial, this can be indicated to mark the burial, provided that "the tombstone, plaque, or other support, placed by the relatives or other interested parties, must be accompanied by a plaque indicating the name and surname of the deceased."

compliance with the norms and conditions established by the municipal regulation." In the absence of a request from the parents, however, practice has shown that the authorization for burial is issued by the health authority even several months after the request from the hospital facility, and is transmitted or delivered to the municipal cemetery services that periodically handle the collection and transport of the boxes containing the fetuses along with the aforementioned authorization documentation.

In this regard, the Municipality of Brescia has produced documentation related to three cases of burial authorization. Since the regional regulations do not contemplate the possibility that burial may not take place, the documentation provides for the certification of compliance with the informational obligation referred to in Article 11 of the aforementioned Regional Regulation and the possibility of acquiring (any) preferences of the parents regarding the chosen cemetery and the management methods (e.g., burial, cremation) or to indicate "no preference."

The first two cases concern authorizations for the burial of products of conception under 20 weeks at the request of the healthcare facility and not the parents; in the first case, in fact, the latter did not express "no preference" regarding the methods (burial/cremation) and the burial site, which were chosen by the hospital facility; in the second, "the parent waived the funeral rite and therefore the healthcare facility will follow the following procedures: a. burial as recognizable anatomical parts (name assigned "XX [omitted]"). In a third case, the authorization from the ATS and the "notification of stillborn" was produced, but not the burial request from the healthcare facility.

From the dates affixed to the aforementioned documents, it is also noted that the ATS authorizations were issued some time after the request from the healthcare facility (in two cases after more than three months, in the other after 10 days). For this reason, it cannot be accepted what the Municipality

represented regarding the fact that the burial took place at the request of the parents, since it must be submitted, in light of Article 7 of the d.P.R. 285/1990, “within 24 hours of the expulsion or extraction of the fetus.”

Furthermore, from the aforementioned documentation, it does not emerge that the name was chosen by the parents nor is there any explicit request to indicate the name and surname on the headstone. It cannot therefore be considered proven that, as stated by the Municipality, the burial would take place “only in the presence of the parents' authorization” and that “the Municipality in this case is obliged to provide, based on the data it receives from the ATS.”

As evidence that the documentation transmitted to the Municipality by the ATS did not clearly indicate the parents' wishes, it is highlighted that the Municipality, already prior to the initiation of this investigation, with the note of XX, communicated to the health management of the hospitals and clinics in the city of Brescia that “With reference [...] to the repeated articles appearing [...] in the national and local press, the cemetery management of the Municipality of Brescia – pursuant to and for the effects of Article 11 of Regional Regulation No. 6/2004 concerning funeral and cemetery activities, - informs that from next November the burial of abortive products in graves will only take place with the express consent of the parents, which these hospitals must collect and communicate specifically attached to the notification model of stillborns” (see attachment 4 to the note of XX).

From another perspective, it is noted that the choice to indicate the surname of the woman (or that of the husband or partner) to mark the burial of a fetus constitutes treatment not compliant with the principle of “accuracy” (Article 5, paragraph 1, letter d of the Regulation), as such data cannot in any way be assimilated to the “data of the deceased”; Article 70 of the d.P.R. 285/1990 refers exclusively to the data of the “deceased,” and the repeatedly cited regulatory framework does not provide for the attribution of a name and surname to the fetus.

Finally, considering that the purported purpose pursued with the indication of the data is to trace and allow the identification of the burial site of the fetuses, this purpose can be achieved in other ways, as evidenced, among other things, by the measures subsequently implemented by the Municipality, consisting of covering the existing plaques with the indication of a code, aimed at allowing “only the offices to identify the fetus/abortive product, for which there is no express declaration from the mother or the parents in the Cemetery Management records indicating not only the burial but also the plaque with the identifying data of the fetus.”

In light of the possibility of marking the burials in question with a simple code, the choice to indicate name and surname also conflicts with the principle of “minimization,” which requires that the data be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letter c) of the Regulation). Furthermore, such treatment, being devoid of a specific and legitimate purpose – fully achievable without the indication of data – also conflicts with the principle of “purpose limitation” (Article 5, paragraph 1, letter b) of the Regulation).

For the reasons outlined above, the processing of the data subject to this procedure appears to be carried out in the absence of an adequate legal basis (Articles 6 and 9 of the Regulation; Articles 2-ter and 2-sexies of the Code, as in force at the time of the facts), and in a manner not compliant with the principles of “lawfulness, fairness, and compliance.”

****Transparency**, **Limitation of Purpose**, **Data Minimization**, and **Accuracy**, in violation of Article 5, paragraph 1, letters a), b), c), and d) of the Regulation, as well as in violation of a specific prohibition (Article 2-septies, paragraph 8 of the Code).**

5. **Conclusions.**

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under Article 168 of the Code - although deserving of consideration, do not entirely overcome the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of the present procedure pursuant to Article 14, paragraph 1, of the Garante Regulation No. 1/2019, as none of the cases provided for in Article 11 referenced therein apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Municipality is noted, for having processed personal data in violation of Articles 5, paragraph 1, letters a), b), c), and d), 6, and 9 of the Regulation, as well as Articles 2-ter, 2-sexies, and 2-septies, paragraph 8 of the Code, as in force at the time of the facts. The violation of the aforementioned provisions makes the administrative sanction provided for by Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referenced by Article 166, paragraph 2, of the Code. Taking into account what emerged during the investigation and considering the measures adopted by the Municipality to remedy the contested violations and ensure compliance of the processing with the legislation on personal data protection - covering existing plaques and limiting access to such data from the online consultation service and removing the wording "fetuses and stillborns," using a code for the identification of burials, providing adequate documentation unequivocally bearing the request for burial by relatives - there are currently no grounds for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

6. **Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code)**.

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). Considering that the violation of the aforementioned provisions by the Municipality occurred as a result of conduct that can be considered unitary (same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000 (twenty million/00).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the particular nature, severity, and duration of the violation, the specific nature of the processing concerning the dissemination of personal data must be considered, in the terms indicated in the reasoning, both through indications on burials and on the Municipality's institutional web portal, through the consultation of the online service (Article 83, paragraph 2, letter a), of the Regulation), taking into account, favorably, the circumstance that the dissemination did not concern the complete personal details of the woman. It is believed that, however, the sensitivity of the data processed must be taken into consideration, as they relate to health, for which a strict confidentiality regime is also provided (Article 83, paragraph 2, letter g), of the Regulation).

In favor of the Municipality, however, the negligent nature of the violation must be considered, given the Municipality's initial erroneous belief regarding the existence of "entitled subjects [...of the expression of] will to bury the fetus to which a name and surname are attributed" (Article 83, paragraph 2, letter b) of the Regulation).

In light of these circumstances, it is believed that, in this specific case, the level of severity of the violation committed by the data controller can be considered high (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, it should be taken into account...

consideration, in favor of the Municipality, the circumstance that there are no previous relevant violations committed by the data controller (art. 83, par. 2, lett. e), of the Regulation) as well as the degree of cooperation demonstrated by the data controller with the supervisory authority in order to remedy the violation and mitigate its possible negative effects, taking into account that the data controller has adopted measures such as covering existing nameplates and indicating a code for the identification of burials, providing adequate documentation unequivocally stating the request for individual burial by relatives, as well as a limitation of the data accessible through the IT application and the removal of the wording "fetus or stillborn" (art. 83, par. 2, lett. f, of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the administrative fine at €10,000.00 (ten thousand/00) for the violation of articles 5, par. 1, lett. a), b), c) and d), 6 and 9, of the Regulation as well as articles 2-ter, 2-sexies and 2-septies, paragraph 8 of the Code, as in force at the time of the facts, as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and deterrent.

In this context, it is also considered that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed. This is due to the sensitivity of the data subject to violation, considering that the investigation concerned, as illustrated in the reasoning, an unlawful processing of health-related data.

Finally, it is noted that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Municipality of Brescia for the violation of articles 5, par. 1, lett. a), b), c) and d), 6 and 9, of the Regulation as well as articles 2-ter, 2-sexies and 2-septies, paragraph 8 of the Code, as in force at the time of the facts, as stated in the reasoning;

ORDERS

pursuant to articles 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, the Municipality of Brescia, with registered office at Piazza Loggia n. 1, 25121 Brescia (BS) C.F. 00761890177, to pay the total sum of €10,000.00 (ten thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction; pursuant to articles 58, par. 1, lett. a), of the Regulation and 157 of the Code, to confirm to this Authority, within thirty days from the notification of this provision, that following the intervention on the application of the Online Cemetery Services Portal, currently, only the locations of stillborns, as well as of aborted products or conceptions for which there is an express request for individual burial and the name by relatives, are consultable;

ORDERS

the Municipality of Brescia:

to pay the total sum of €10,000.00 (ten thousand/00) in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of the injunction order on the Authority's website;

pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Regulation of the Authority no. 1/2019, the publication of this provision on the website of the Authority;

pursuant to art. 17 of the Regulation of the Authority no. 1/2019, the annotation of this provision and the measures adopted pursuant to art. 58, par. 2, of the Regulation, in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation.

Pursuant to articles 78 of the Regulation, 152 of the Code and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi